

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL 1928

By: Murdock of the Senate

and

6 Moore of the House

7
8
9 COMMITTEE SUBSTITUTE

10 An Act relating to water and water rights; amending
11 82 O.S. 2021, Section 1020.19, which relates to
12 metering of wells; removing certain meter use
13 requirement; authorizing the Oklahoma Water Resources
14 Board to implement certain allocation to encourage
15 conservation after certain date; specifying
16 requirements for participation; prohibiting excessive
17 use; requiring development of certain voluntary
18 groundwater use measurement program; requiring
19 issuance of annual certification; requiring
20 submission of certain certification with annual water
21 use report; exempting certain wells from provisions;
22 and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.19, is
amended to read as follows:

Section 1020.19. ~~Upon request of a majority of the landowners
residing within a basin or subbasin, the Board is authorized to
require that water wells be metered and that such meters as the~~

~~Board shall approve be utilized by the applicant and placed under seal, subject to reading by the agents of the Board at any time. The Board may also require that the applicant report the reading of such meters at reasonable intervals.~~

A. To encourage groundwater conservation, beginning January 1, 2027, the Oklahoma Water Resources Board shall provide a five-year flex allocation of groundwater usage based off the previously determined allocated annual use of the basin or subbasin. A five-year flex allocation shall not require a new permit for existing permit holders. A five-year flex allocation shall be available for:

1. Existing permit holders for groundwater use permits in basins or subbasins, based upon the maximum annual yield determination at the time of the original application;

2. New applicants for groundwater use permits in basins or subbasins based upon the current maximum annual yield determination;
and

3. New and existing applicants and temporary permit holders for groundwater use permits in basins or subbasins where the maximum annual yield has yet to be determined.

B. An applicant for a five-year flex allocation shall be required to:

1. Submit an annual usage report of the prior year's usage from a Board-approved water measurement system; and

2. Pay the annual groundwater permit fee.

1 C. A five-year flex allocation shall allow the permit holder to
2 exceed the determined annual allocation in any year of the five-year
3 allocation; provided, that the applicant shall adhere to the
4 cumulative annually determined allocation of the basin or subbasin
5 over the five-year period. The permit holder shall not exceed the
6 permitted annual allocation by over one hundred fifty percent (150%)
7 in any of the five (5) years.

8 D. 1. For all permit holders not participating in the five-
9 year flex allocation pursuant to this section, a groundwater
10 irrigation district created pursuant to the Groundwater Irrigation
11 District Act or a conservation district participating in a
12 conservation cost-share program pursuant to Section 3-3-101 et seq.
13 of Title 27A of the Oklahoma Statutes shall develop a voluntary
14 groundwater use measurement program that provides Board-approved
15 measuring systems to members, on a loan or cost-share basis, for use
16 in verifying the volume of water pumped from wells and irrigation
17 systems to ensure system efficiency and proper accounting of water
18 use.

19 2. The groundwater irrigation district or conservation district
20 shall issue an annual certification that the permit holder has
21 participated in the groundwater use measurement program pursuant to
22 paragraph 1 of this subsection. The certification shall be
23 submitted with the permit holder's annual water use report.

24 E. Nothing in this section shall apply to domestic wells.

SECTION 2. This act shall become effective November 1, 2026.

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